

HOUSE BILL 546

By Cochran

AN ACT to amend Tennessee Code Annotated, Section  
12-3-1205, relative to cooperative purchasing.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 12-3-1205(b)(4)(B), is amended by deleting the subdivision and substituting instead:

(B) Purchases of construction, engineering, or architectural services, or construction materials. As used in this subdivision (b)(4)(B), "construction" and "construction materials" does not include:

(i) Materials used in the operation of a municipal utility system, including, but not limited to, transformers, conductors, insulators, poles, cross-arms, anchors, pipes, valves, meters, or other components or parts of a utility system, whether purchased in accordance with a purchasing agreement with the Tennessee Valley authority or another purchasing arrangement; or

(ii) Materials, labor, and services used for maintenance, operations, component replacement, or repairs of existing facilities and grounds owned or operated by a local education agency or by a local government agency; or

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.